

23NWCV02735 23NWCV02735

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Case Number: 23NWCV02735 Hearing Date: July 2, 2026 Dept: P

FREDY GERARDO PASCUAL TZAJ v. CMS PRODUCE, INC., ET AL>

CASE NO.: 23NWCV02735

HEARING: 07/02/2026 @ 9:30 AM

#7

TENTATIVE ORDER

I.

Plaintiff Fredy Gerardo Pascual Tzaj's motion to compel Defendant Michelle Jin to provide responses to form interrogatories - general, set one, is GRANTED.

II.

Plaintiff's request for monetary sanctions is GRANTED in the amount of \$540 against Defendant Michelle Jin.

Moving party to give notice.

Plaintiff Fredy Gerardo Pascual Tzaj (Plaintiff) moves to compel Defendant Michelle Jin (Defendant) to provide responses to form interrogatories (FROGs) – general, set one.

Background

On August 29, 2023, Plaintiff filed this wrongful

termination action against Defendants CMS Produce, Inc., Michelle Jin, Wendy Jin, Gustavo Urbieto Santos, and Does 1 through 10 (collectively, Defendants). The complaint alleges that between March 7, 2023 and April 11, 2023, Plaintiff was employed as a warehouse worker for Defendants. (Complaint, ¶ 16.) The complaint alleges that Plaintiff worked in excess of eight hours in a workday and was not paid for overtime work and that Defendants did not provide accurate wage and earning statements on a monthly or bi-weekly basis. (Complaint, ¶¶ 18-19.) Moreover, the complaint alleges that “[a]s a direct result and consequence of Plaintiff complaints to Defendants, Defendant Santos subjected Plaintiff to discriminatory disparate treatment and continued to make Plaintiff work without breaks. Plaintiff felt he had no viable option other than to constructively terminate his employment.” (Complaint, ¶ 55.)

The complaint asserts seven causes of action including Labor Code violations, violations of the Business and Professions Code § 17200, and wrongful termination in violation of public policy.

Legal Standard

A party to whom interrogatories are propounded must respond within 30 days of service of the interrogatories. (Code Civ. Proc., § 2030.260.) If a party fails to serve a timely response, the party propounding interrogatories may move for an order compelling responses. (Code Civ. Proc., § 2030.290.) Additionally, “the party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product.” (Code Civ. Proc., § 2030.290.)

Discussion

Plaintiff moves to compel Defendant to provide responses to FROGs - general, set one. This motion is unopposed.

Plaintiff states that on October 1, 2025, Plaintiff propounded FROGs - general, set one on Defendant. (Lee Decl., ¶ 3.) Plaintiff granted Defendant multiple extensions, eventually making responses due by January 21, 2026. (Lee Decl., ¶¶ 4-5.) As of the date Plaintiff filed this motion, Defendant had not responded to the discovery request. (Lee Decl., ¶ 5.)

Here, Plaintiff establishes that he properly served Defendant with FROGs – general, set one, and that Defendant failed to respond.

Accordingly, Plaintiff's motion to compel Defendant to provide responses to form interrogatories - general, set one, is GRANTED.

Defendant Michelle Jin is ORDERED to provide verified responses, without objections, to form interrogatories - general, set one within 30 days of this Order. This date may be extended pursuant to agreement between the parties.

Sanctions

Plaintiff argues that monetary sanctions should be imposed on Defendant for failing to provide discovery responses.

"The court shall impose a monetary sanction...against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.290, subd. (c).) Plaintiff requests \$5,400 in connection with ten motions to compel reflecting Plaintiff's counsel's hourly rate of \$600, five hours to prepare all motions, an estimated three hours to prepare for and appear at the hearing, and \$600 in filing fees (10 motions at \$60.00 per filing). (Lee Decl., ¶ 7.) Given that there is only one motion on calendar, the Court divides \$5,400 by 10, representing the ten motions.

Accordingly, Plaintiff's request for monetary sanctions is GRANTED in the amount of \$540 against Defendant.

Defendant Michelle Jin is ORDERED to pay this amount within 30 days of this Order. This date may be extended pursuant to agreement between the parties.